Religious Minority Rights in Pakistan: A Constitutional Framework

Pakistan's history as a secular state founded in 1947 evolved into an "Islamic Republic" in 1956, shifting its ideological focus. Quaid-e-Azam Muhammad Ali Jinnah, the nation's founder, initially promoted equal rights for Muslims and non-Muslims. However, the 1973 Constitution aimed to ensure equal rights for all citizens, encompassing religious freedoms.

In practice, religious minorities, constituting about 4% of the population, face challenges, especially Christians, Hindus, and Sikhs.

1. **Christians**: Despite contributing significantly to society through schools and hospitals, they have seen their properties and institutions nationalized, faced attacks, and grappled with the controversial blasphemy law.
2. **Hindus**: Primarily in Sindh, they face issues with marriages, outdated laws, violence, and economic disparities.
3. **Sikhs**: With historical ties to Pakistan, they experience challenges like kidnapping for ransom and additional charges.

The constitutional framework provides strong legal safeguards, including:

- **Article 20**: Guaranteeing religious freedom.
- **Article 21**: Protecting against religiously-motivated taxation.

However, reports show Sikhs are pressured to pay extra taxes.

- **Article 22**: Safeguarding religious educational institutions and preventing discrimination in services.

- **Article 27**: Preventing discrimination based on race, religion, caste, sex, or place of birth, though implementation remains a concern.
- **Article 28**: Preserving language, script, and culture.
- **Article 36**: Committing to protect minorities.

In practice, there is a significant gap between the constitutional framework and the experiences of religious minorities, highlighting the need for stronger legal and policy measures and enforcement to ensure their rights and security.